JBAV 内部限定資料

NATIONAL ASSEMBLY

Law No. ……./2016/QH14

SOCIALIST REPUBLIC OF VIETNAM

Independence-Freedom-Happiness

Hanoi, [date], 2016

DRAFT

AMENDMENTS FOR SPECIFIC PROVISIONS OF THE TECHNOLOGY TRANSFER LAW

Pursuant to the Constitution of the Socialist Republic of Vietnam;

The National Assembly hereby enacts these Amendments for specific provisions of the Technology Transfer Law No. ……../2016/QH14.

Article 1. Changes and updates for specific provisions of the Technology Transfer Law

1. Changes to paragraphs 7 and 20, and updates of paragraphs 22, 23, 24 and 25, Article 3, as follows:

"7. *Technology markets, technology trade fairs, technology exhibitions, technology supply and demand connection activities, technology trading floors and technology trading centers* are places where technologies are showcased, demonstrated and traded, technology transfer promotion takes place and other services related to technology transfer are provided."

20. *Science and technology business incubation* refers to activities undertaken by organizations and individuals to perfect technologies, apply new technologies, raise investment funds, set up production, business and marketing operations, complete legal procedures and provide other necessary services for the creation of science and technology businesses."

22. *Mastering technology* refers to a process spanning from exploration, research and analysis to understand and capture technological principles, and the design, functionality and operation of a piece of equipment, object or system, to adaptation, improvement and perfection of a technology or creating a new technology, piece of equipment, system or object that has equivalent functions or meets current national standards and codes.

23. *Technology innovation* includes steps related to research and development; application and integration of technologies, solutions and processes pertaining to organization, finances, business and trade to create a new process or product that is enhanced in terms of functionality, quality, added value and market competitiveness.

24. *Intermediaries in science and technology markets* are entities offering services in assisting participants in science and technology markets, including entities offering advice, brokerage, technology transfer promotion services; engaging in the application of patents and technology information; technology assessment, pricing and validation; technology incubation, science and technology business incubation, application of technology,

technology commercialization, mastering technology, support for technology innovation and starting technology businesses.

25. *Technology commercialization* refers to organizations and individuals involving in activities including technology transfer, merger and acquisition, business startup, investment promotion, trade promotion and other relevant efforts to integrate technologies in applications, production and business activities in the market."

26. *Starting a technology business* refers to entities or individuals incorporating or developing a business based on products and services created from technology, and scientific and technological research and development results."

2. Changes and updates for Article 5.2, as follows:

"2. Preferring development of high technologies, advanced technologies and technologies that fit the development trends of existing economic-technical sectors and context of the Vietnamese economy, including supporting industries; having in place policies supporting investment and encouraging businesses to take the lead in technology application and innovation; upgrading businesses' technology absorption capacity by building a technology workforce in alignment with investment for technology innovation.

3. Promoting strong development of science and technology markets; having in place policies to support and encourage entities and individuals investing in technology startups; promoting technology incubation and science and technology business incubation; commercializing scientific and technological research and development results into production and trade."

3. Changes and updates to Article 7.2, as follows:

"2. If the technology-related subject referred to in paragraph 1 of this Article is entitled to industrial property right protection, transfer of such industrial property right involving such subject shall follow prevailing intellectual property laws."

4. Changes and updates to Article 11, as follows:

"**Article 11. Technologies banned from transfer**

1. Technologies banned from transfer include:

a) Technologies failing to meet laws and regulations on work safety, work sanitation, human health protection, and natural resources and environment protection;

b) Technologies engendering products that inflict detrimental consequences to socioeconomic development, and adversely affect national defense, national security, and social order and safety;

c) Technologies not allowed to be transferred as ruled by the provisions of the international treaties that the Socialist Republic of Vietnam is a party to;

d) Technologies named in the List of State secrets, unless otherwise ruled by law.

2. The Prime Minister give decisions on the importation, transfer and use of technologies named in the List of technologies banned from transfer for the purposes of scientific and technological research and development."

5. A paragraph 3 shall be appended to Article 22.2 as follows:

"3. Technology transfer prices are determined based on market principles, and are subject to audit and prevailing tax regulations applicable to events where parent-daughter company relationships or other subsidiary relationships exist between the involved parties."

6. Changes and updates to Article 31, as follows:

"**Article 31. Obligations of entities and individuals providing technology transfer services**

1. Entities and individuals providing technology transfer services have the following obligations:

a) Providing technology transfer services exactly as registered for business;

b) Honoring the technology transfer service agreements entered into;

c) Being responsible to the service users and the law for the outcomes of the technology transfer services rendered;

d) Paying compensation for the damages caused by their wrongdoings to the users of the technology transfer services;

dd) Keeping confidential relevant information as agreed upon in the technology transfer service agreement;

e) Fulfilling financial and other obligations in accordance with existing laws.

2. In respect of technology assessment, pricing and validation, in addition to the above provisions of paragraph 1 of this Article, the following obligations also apply:

a) Applying for a Certificate of qualification for provision of technology assessment, pricing and validation services as referred to in Article 32 of this Law;

b) Reporting performance on an annual basis to the qualification certifying authority."

7. Changes and updates to Article 32, as follows:

"**Article 32. Technology assessing, pricing and validating establishments**

1. Technology assessing, pricing and validating establishments include science and technology entities; non-revenue generating public sector agencies tasked with technology assessment, pricing and validation; businesses registering technology assessment, pricing and validation as part of the business lines they are involved in.

2. The government provides details on the attribution, procedures, formalities and eligibility criteria for qualification certification of technology assessment, pricing and validation service provision."

8. Changes and updates of Article 34, as follows:

"**Article 34. Science and technology market development**

1. The government shall make investments from government funding for science and technology, and mobilize other legitimate sources of fund for the development of intermediary entities and promotion of technology supply and demand through related activities.

a) Setting up the technical infrastructure and operation of national level technology exchanges and technology startup support centers;

b) Building technology databases and information, technology supply and demand;

providing staff training for intermediaries; supporting searches, mastering and commercialization of technologies and scientific and technological research and development results; holding national and international events to support activities of intermediaries in science and technology markets;

c) Assessing and validating new technologies and products stemming from scientific and technological research and development results, having prices and quality equivalent to imported technologies and products, to promote uses in government funded investment projects and public sector procurement.

2. Businesses may use their science and technology development funds to make investments, offer and call for counterpart funding for technology startup projects, science and technology business incubation, technology incubation, technology commercialization, scientific and technological research and development results.

3. Science and technology development funds, national technology innovation funds, and depository institutions may accept guarantee in the form of ownership, user rights and rights to assets pertaining to scientific and technological research and development results, and intellectual property subjects as collateral in borrowing transactions financing science and technology projects, technology startups and business development.

4. The Prime Minister provides details for this Article."

9. Changes and updates of Article 40, as follows:

"**Article 40. Commercialization of research and development results for technologies**

1. Transfer of ownership and user's rights for research and development results of technologies created using the government's fund shall be subject to the provisions of the Science and Technology Law.

2. Science and technology regulatory agencies at various levels are responsible to select and disclose commercializable technologies and technology research and development results.

3. Relevant regulatory agencies are responsible to facilitate connections and partnerships between local technology applying and transferring entities, and science and technology entities owning scientific and technological research and development results in honing such scientific and technological research and development results to adapt to local needs and contexts.

4. Annually, the lead agency in charge of scientific and technological research and development shall report to relevant science and technology authorities on the developments of assignment of technology ownership and user rights, technology commercialization, and scientific and technological research and development results created using government funding.

5. In case the science and technology lead agency chooses not to apply available scientific and technological research and development results, the agents representing

government ownership shall assign ownership and user rights of scientific and technological research and development results created using government funding to entities and individuals propelling technology startups projects, and science and technology business incubation.

10. Changes and updates of Article 42, as follows:

"**Article 52. Distribution of earnings related to uses, transfer and commercialization of government-funded scientific and technological research and development result**

1. Distribution of earnings from the transfer and commercialization of technology research and development results financed by the government's fund shall be subject to the provisions of the Science and Technology Law.

2. Creators of registered patents, trade dress and electronic integrated circuit designs and schematics are entitled to compensation as defined by the Intellectual Property Law."

12. Changes and updates to Article 44, as follows:

"**Article 44. Fiscal policies promoting and monitoring technology transfer**

1. Entities and individuals involved in technology transfer shall fulfill their tax obligations and are entitled to available tax incentives as defined in prevailing tax laws and regulations.

2. Entities and individuals transferring technologies and receiving technology transfers shall describe in tax returns the following information: volume of the technology transferred or received, technology names, technological subject, origin and value of the transferred technology, to be used for justification and supervision of tax obligations and tax incentives attached to the technology transferred."

13. Changes and updates of Article 45, as follows:

"**Article 45. Supporting and encouraging technology application and innovation among businesses**

1. Technology application and innovation hubs shall be created in various economic zones to support businesses in the following undertakings: developing, testing, honing and mastering technology to support product development, prioritizing national products, backbone products, key products and supporting industry products listed for preferred development.

Premised on the current socioeconomic development goal, national science and technology development strategy and contributions of science and technology to economic development, the Ministry of Science and Technology shall, as a lead agency and in cooperation with other relevant ministries and ministerial level agencies, People's Committees of provinces and central-level cities, prepare and refer to the Prime Minister plans to set up technology application and innovation centers.

2. The government shall support part of all technology transfer costs for involved science and technology entities, and businesses in areas and sectors entitled to investment incentives.

3. Businesses investing in technology development, testing, honing and mastering are entitled to precedence of support from the National technology innovation fund, National science and technology development fund, Science and technology development funds of ministries, ministerial level agencies, provinces and central-level cities, and available government funding.

4. The Prime Minister provides details for this Article."

14. Changes and updates to Article 50, as follows:

"**Article 50. Keeping records of technology transfer**

1. Keeping records of technology transfer includes keeping records on the volume and value of technology transfer contracts and technology commercialization agreements. Keeping records of technology transfer is a component of the annual statistical report of science and technology regulatory agencies, and shall be done in accordance with existing records laws and regulations.

2. The Ministry of Science and Technology shall work with the Ministry of Planning and Investment (General Statistics Office) to gather information and statistical data on technology transfer and technology innovation.

3. The Ministry of Science and Technology shall, in cooperation with the Ministry of Finance (General Department of Taxation and General Department of Vietnam Customs), initiate connections and statistical data sharing on technology transfer.

4. The Ministry of Science and Technology shall, as a lead agency and in cooperation with other relevant agencies, provides specific regulations on how gathering statistical data on technology transfer shall be done."

15. Changes to paragraph 2, and updates of 2a and 2b, paragraph 2; 5a of paragraph 5, 7a of paragraph 7, Article 52, as follows:

"2. As a lead agency, collaborating with other ministries, ministerial level agencies, and governmental agencies in designing strategies for technology importation, and having in place measures, mechanisms and policies to promote technology importation, technology transfer and technology innovation, and referring to the Prime Minister for review and enactment;"

2a. Taking a leadership role and collaborating with other ministries and line agencies to commission technology advancement and technology capacity assessment in specific industries and sectors, as guided by current socioeconomic development and international integration needs from time to time;

2b. Taking a leadership role and collaborating with other relevant ministries, ministerial level agencies and governmental bodies in preparing technology startup promotion programs and technology importation proposed projects along the line of the country's socioeconomic development process, and referring to the Prime Minister for enactment;

5a. Releasing the lists of qualified technology assessment, pricing and validation agencies;

7a. Commissioning technology appraisal for investment projects using technologies in the List of technologies restricted for transfer; assessment and review of new technologies and products created using new technologies, having quality and prices comparable to imported products and technologies, to encourage uses in government funded investment projects and procurement, and to meet domestic market demand;

7b. Providing specific regulations on how gathering statistical data on technology transfer shall be done.

16. Addition of a paragraph 1a after Article 53.4, as follows:

"1a. Collaborating with the Ministry of Science and Technology in keeping control of technology and quality of products, commodities and services created by technology application and transfer within respective jurisdiction."

17. In the Technology Transfer Law No. 80/2006/QH11, the term "technology business" shall be replaced with "science and technology business", and "technology market" replaced with "science and technology market".

18. Articles 8.3, 24.2.b, 28.2, 33 and paragraphs 2 and 2, Article 44 of the Technology Transfer Law No. 80/2006/QH11 shall be rescinded.

Article 2

1. This Law comes into effect from [date] …

2. The government provides details and implementing guidance for the clauses and provisions assigned to it in this Law.

This Law is passed by the National Assembly of the Socialist Republic of Vietnam, Term …, Session …, on [date] …

NATIONAL ASSEMBLY CHAIR